YULLR

Customer Agreement

This Customer Agreement (this **"Agreement"**) is entered into as of the **Effective Date** set forth below, by and between **YULLR, Inc.**, a Delaware corporation ("**YULLR**"), and the entity identified below ("**Customer**").

YULLR and Customer may be referred to herein collectively as the **"Parties"** or individually as a **"Party."** The Parties agree as follows:

1. Parties.

1.1 YULLR

YULLR, Inc. 173 Tin Mountain Road, Jackson, NH 03846

Email for Notices: support@YULLR.com

1.2 Customer

Legal Name: ____

Entity Type: ☐ Ski Area ☐ Ski Academy ☐ Other: ___________________________________

State / Country of Formation: ________________________________

Authorized Signatory: ____

Address for Notices: ________________________________

Email for Notices: ____

Customer represents that it is duly organized, validly existing, and in good standing under the laws of its jurisdiction of formation and has full authority to enter into this Agreement.

1.3 Facility Identification

Primary Facility Name: _________________________________

Facility Location (City/State/Country): _________________________________

Additional Facilities, if any, shall be identified in one or more Order Forms executed under this Agreement.

1.4 Effective Date

Effective Date: _______________________

2. Definitions of Terms.

For purposes of this Agreement, the following terms have the meanings set forth below. Additional defined terms may appear elsewhere in this Agreement.

2.1 **"Customer"** means the legal entity identified in Section 1.2 of this Agreement. Customer shall be either a ski area operator or, in limited cases, a ski academy or other organization, but not both. For the avoidance of doubt, any ski teams, clubs, coaches, athletes, leagues, or other third parties that may access or use the Platform are not considered Customer(s), except to the extent expressly authorized by YULLR in accordance with this Agreement.

2.2 **"Facility"** means the ski area, mountain, or related premises identified in Section 1.3, and any additional facilities identified in an applicable Order Form, at which the Equipment is installed, and the Offering is operated, whether owned, leased, or otherwise controlled by Customer or a third party. For a Ski Academy or other organization Customer, 'Facility' is referenced solely for location identification purposes and does not imply authority beyond the Authorized Deployment Scope.

2.3 **"Equipment"** means the cameras, mounting hardware, servers, networking components, and related equipment provided, installed, or operated by YULLR in connection with the Offering.

2.4 **"Platform"** means YULLR's proprietary software, applications, and related services used to capture, process, and deliver video content.

2.5 **"Offering"** means the Equipment, Platform, and related services provided by YULLR under this Agreement.

2.6 **"End User"** means an individual skier or snowboarder who accesses Content through the Platform.

2.7 "**Individual End User Subscription**" means a subscription or access right purchased by or for an End User to view, access, or retain Content generated through the Offering.

2.8 **"Attributed Revenue"** means gross revenue received by YULLR from Individual End User Subscriptions that are reasonably attributable to End User activity at Customer's Facility, as determined by YULLR using tracking, attribution, or integration methods that may evolve over time.

2.9 **"Authorized Deployment Scope"** means the specific trails, locations, use cases, and operational contexts at the Facility for which Customer has obtained the authority to permit YULLR to install, operate, maintain, and remove Equipment and to operate the Offering, as expressly identified in the applicable Order Form, addendum, or other written authorization executed by the Parties. For the avoidance of doubt, an Authorized Deployment Scope may be limited by trail, area, use case (for example, race training, competition, or recreational use), or time period, and authority granted for one Authorized Deployment Scope shall not imply authority for any other scope unless expressly stated in writing.

2.10 **"Content"** means video recordings, footage, data, metadata, analytics, and other audiovisual or digital materials captured, generated, processed, or delivered through the Offering.

2.11 **"Customer Data"** means data, information, or materials provided or made available by Customer or its authorized users to the Platform, excluding Content.

2.12 **"Personal Information"** means any information relating to an identified or identifiable natural person, as defined under applicable data protection laws.

2.13 **"YULLR Assets"** means the Platform, Equipment, Offering, Content, software, documentation, trademarks, and all other materials or intellectual property provided by or owned by YULLR.

2.14 **"Channels"** means Customer-controlled websites, physical locations, point-of-sale systems, marketing materials, or other distribution or promotional channels.

2.15 **“Third-Party Products”** means software, data, services, or products not provided by YULLR that are integrated with or used in connection with the Platform.

2.16 **“Effective Date”** means the date set forth in Section 1.4.

2.17 **“Capture Locations”** means the specific physical locations within the Authorized Deployment Scope at the Facility where Equipment is installed or operated, including but not limited to trails, training areas, terrain parks, base area structures, lift buildings, timing shacks, lodges, utility poles, trees, or other approved mounting locations, as identified in an applicable Order Form or otherwise agreed in writing by the Parties.

2.18 **“Order Form”** means a written ordering document executed by YULLR and Customer that references this Agreement and sets forth specific commercial, deployment, or operational terms applicable to the Offering, which may include fees, payment terms, revenue sharing percentages or thresholds, Authorized Deployment Scope, Capture Locations, term details, or other mutually agreed terms. Each Order Form is incorporated into and governed by this Agreement.

2.19 **“Technical Administrator”** means a person designated by Customer as responsible for overseeing the day-to-day operational readiness of the YULLR Equipment and Platform at the applicable Facility. The names and contact information for all Technical Administrator(s) shall be provided by Customer in the applicable Order Form.

Technical Administrator(s) are responsible for performing reasonable operational checks, including logging into the Platform to verify that the Platform is running as expected and that Equipment appears operational. Technical Administrator(s) may be required to communicate directly with YULLR customer service, ski area network administrators, and facilities personnel to coordinate troubleshooting efforts and to support the ski area infrastructure necessary for proper Platform operation.

For clarity, Technical Administrator responsibilities relate to operational oversight and coordination and do not include repair, replacement, or modification of Equipment unless otherwise expressly agreed in writing.

YULLR recommends, but does not require, that Customer grants Technical Administrator(s) an Admin User account to access applicable digital settings within the Platform.

2.20 **“Admin User”** means a person authorized by Customer with a user account that provides access to the Platform’s digital tools for the creation, configuration, scheduling, and management of events within the Platform. Events are typically, but not exclusively, training sessions or races during which Content is generated.

Event configuration is a critical operational responsibility of Customer and must be performed by an Admin User in order for the Platform to successfully generate Content. Failure to properly configure events in advance may result in delayed, incomplete, or unavailable Content.

For clarity, Admin User responsibilities relate solely to digital event configuration and management and do not include responsibility for physical Equipment, installation, or facility infrastructure.

3. Customer Type and Authorization.

3.1 Default Customer – Ski Area. Unless otherwise expressly indicated in the Order Form, Customer is a ski area operator that owns, leases, or otherwise controls the Facility and has authority to permit installation and operation of the Equipment and Offering.

3.2 Special Case – Ski Academy Customer. If Customer is a ski academy or other organization that does not own or control the Facility, Customer represents and warrants that it has obtained, and shall maintain for the duration of the Agreement, all permissions, licenses, and approvals necessary to authorize YULLR to operate the Offering solely within the Authorized Deployment Scope identified in the applicable Order Form by entering into a

Facility Authorization Addendum in form mutually acceptable to Customer, the Facility operator, and YULLR, which shall be incorporated into and made part of this Agreement.

Customer acknowledges and agrees that:

(a) it shall only use the Offering within the Authorized Deployment Scope;

(b) it shall not authorize deployment or operation of the Offering outside the Authorized Deployment Scope; and

(c) any expansion or deployment beyond the Authorized Deployment Scope shall require additional written authorization, which may include execution of an addendum or additional Order Form.

Customer acknowledges that YULLR is relying on these representations in entering into this Agreement.

4. The Term. The initial term and any renewal terms of this Agreement shall be as set forth in the applicable Order Form, unless earlier terminated in accordance with this Agreement.

5. Commercial Terms Framework. Customer's fees, payment obligations, revenue sharing percentages, thresholds, and other commercial terms shall be set forth in one or more Order Forms executed by the Parties and governed by this Agreement.

6. Order of Precedence. In the event of a conflict between this Agreement and any Order Form or addendum, the following order of precedence shall apply: (1) Order Form, (2) Facility Authorization Addendum (if applicable), (3) this Agreement.

7. The Offering.

7.1 Overview. Subject to the terms and conditions of this Agreement, YULLR shall provide Customer with access to the Offering at the Facility during the Term. The Offering is designed to capture, process, and deliver video content of skiers and snowboarders using designated trails at the Facility for training, competition, and recreational use.

7.2 Evolution of the Offering. Customer acknowledges that the Offering is expected to evolve over time, including the addition of new features, applications, delivery methods, and commerce workflows. YULLR may update or modify the Offering, provided that such changes do not materially degrade the core functionality of the Offering at the Facility.

7.3 No Guarantee of Coverage or Results. Customer acknowledges that the Offering involves outdoor equipment, variable terrain, environmental conditions, and reliance on third-party infrastructure. YULLR does not guarantee continuous or complete video coverage of any specific trail, athlete, event, or End User, nor uninterrupted availability of content, and shall not be responsible for limitations or interruptions caused by weather, terrain, power availability, network connectivity, construction activity, or Facility operations.

8. Equipment Installation, Operation, and Ownership.

8.1 Installation and Capture Locations. At a mutually agreed time following the Effective Date, YULLR shall deliver and install the Equipment at one or more locations at the Facility (the **"Capture Locations"**). Installation shall be coordinated with Customer's designated operations or maintenance personnel, regardless of whether Customer is the ski area operator or a ski academy or other organization. Capture Locations shall be mutually determined by Customer and YULLR, and may include race trails, training areas, recreational trails, terrain parks, base area structures, lift buildings, timing shacks, lodges, utility poles, trees, or other suitable structures, as reasonably determined by YULLR in consultation with Customer. Customer acknowledges that Capture Locations may change over time due to operational, environmental, performance, or safety considerations. All such installation and operation shall be limited to the applicable Authorized Deployment Scope.

8.2 Expansion of Authorized Deployment Scope. The Authorized Deployment Scope may be expanded, modified, or supplemented by mutual written agreement of the Parties, which may be documented in an additional Order Form, addendum, or other written confirmation. Any such expansion may include revised deployment locations, additional trails or use cases, modified operational responsibilities, and revised revenue attribution, without requiring termination or replacement of this Agreement.

8.3 Equipment Ownership and Bailment.

Customer acknowledges that:

(a) the Equipment is neither leased nor sold to Customer;

(b) all right, title, and interest in the Equipment remains solely with YULLR; and

(c) Customer holds possession of the Equipment solely as a bailee for the duration of the Agreement.

Customer acquires no ownership, lien, security interest, or other right in or to the Equipment, and shall not permit any third parties to assert any lien, security interest, or other right in or to the Equipment. The Equipment shall not be deemed a fixture or part of the real property of the Facility.

8.4 Care of Equipment; Damage or Loss. Customer shall exercise reasonable care in safeguarding the Equipment and shall not permit the Equipment to be damaged, altered, relocated, disconnected, disabled, or serviced except by YULLR or with YULLR's prior written approval.

Customer shall be responsible for, and shall reimburse YULLR for, the reasonable costs of repair or replacement of any Equipment that is damaged, destroyed, lost, or rendered inoperable to the extent caused by or resulting from:

(a) Customer's or its employees', contractors', or agents' (including those of the Facility) negligence or willful misconduct;

(b) Construction, maintenance, or infrastructure activities directed or controlled by Customer; or

(c) Customer's failure to comply with this Agreement.

Customer shall promptly notify YULLR upon becoming aware of any actual or threatened damage, loss, or malfunction of the Equipment.

8.5 Power, Network, and Site Access. Customer shall provide reasonable access to electrical power and local network connectivity required for operation of the Equipment. Customer acknowledges that availability of power and network infrastructure may vary across the Facility and that some Equipment may rely on wired, wireless, or alternative power solutions. Customer shall provide YULLR with reasonable advance Notice of planned construction, maintenance, or infrastructure changes that may affect power, network connectivity, or physical access to the Equipment and shall cooperate in good faith to minimize disruption. If YULLR incurs reasonable costs to restore operation of the Equipment due to Customer-caused interruption of power, network connectivity, or physical access, Customer shall reimburse such costs.

8.6 No Operational Control. Customer acknowledges that YULLR does not control and shall have no responsibility for ski area operations, trail access, training schedules, course layouts, lift operations, snowmaking, grooming, safety policies, or Facility staffing, all of which remain solely within Customer's discretion.

8.7 Removal of Equipment. Upon expiration or termination of this Agreement, YULLR shall remove the Equipment within a reasonable time. Except where termination results from Customer's material breach, YULLR shall bear its own removal costs. If termination results from Customer's material breach, Customer shall be responsible for YULLR's reasonable removal costs.

9. Customer Responsibilities.

9.1 Authorized Users. Customer may authorize ski teams, academies, clubs, coaches, leagues, or other programs to access or use the Platform. Customer remains solely responsible for all activity conducted under its account and for compliance with this Agreement by its authorized users. Authorized users are not parties to this Agreement.

9.2 Event Configuration, Training, and Technical Administration. Customer is responsible for configuring training sessions and race events within the Platform, including basic event settings, camera assignments, scheduling, and, where applicable, the upload or integration of third-party event data.

Customer acknowledges that effective operation of the Platform also requires ongoing configuration and adjustment of camera field-of-view, positioning, and related technical settings at the Capture Locations as training and race course layouts change over time. Accordingly, Customer shall designate one or more individuals (either a Technical Administrator or Admin User, as applicable) with authority to configure and manage camera field-of-view, positioning, and related technical settings within the Platform on Customer's behalf.

Customer acknowledges that camera configuration is a shared-resource function, particularly where multiple teams or programs utilize the Platform, and that consistent and coordinated management by the Technical Administrator(s) and Admin User(s) is necessary for optimal Platform performance and content quality.

YULLR will provide up to two (2) initial training sessions to Customer's designated personnel, which may include Technical Administrators and Admin Users, covering general Platform use, event setup, and camera configuration tools. Following completion of such training, ongoing event configuration, camera adjustments, and day-to-day event management remain Customer's responsibility.

Customer acknowledges that timely configuration of events, including configuration within twenty-four (24) hours of applicable training sessions or events, is important for optimal Platform performance and content availability. Failure to configure events or maintain appropriate camera configuration may result in delayed, incomplete, or unavailable content.

Customer further acknowledges that while YULLR will provide reasonable technical support related to Platform functionality, YULLR does not control and is not responsible for Customer's operational decisions, event setup, or camera configuration choices made by Customer or its designated Technical Administrator(s) and/or Admin Users.

Customer acknowledges that the same individual may serve as both a Technical Administrator and an Admin User, provided that all responsibilities associated with each role are fulfilled.

9.3 Third-Party Data. If Customer elects to integrate third-party data, including timing or participant data, Customer is responsible for obtaining, providing, and ensuring the accuracy and appropriate use of such data. YULLR is not responsible for the completeness or correctness of third-party data.

9.4 Customer Systems and Compliance. Customer is responsible for maintaining its own systems, network connectivity, and operational processes necessary to support use of the Offering and for complying with all applicable laws in connection with its use of the Platform. YULLR does not control and is not responsible for how Customer or authorized users rely on or interpret content made available through the Platform.

9.5 Customer Assumptions. Customer acknowledges that the Offering is intended to augment, and not replace, existing training, event management, coaching, or guest experience workflows, and that Customer remains responsible for determining how and when to use the Offering in connection with its programs and operations.

10. End Users and Content

10.1 End User Relationship. All End Users access the Platform pursuant to YULLR's end user terms and privacy policies. YULLR is the contracting party with End Users. Customer shall not represent itself as the seller of Individual End User Subscriptions.

10.2 Content Ownership. As between the parties, YULLR owns all video content, derivatives, and processed outputs generated by the Offering. Customer and End Users are granted limited rights to access and use content through the Platform in accordance with applicable terms.

11. Commerce and Marketing.

11.1 Revenue Sharing. Customer's entitlement to revenue sharing on Attributed Revenue is set forth in this Agreement and the applicable Order Form.

11.2 Attribution and Measurement. YULLR shall determine attribution of revenue to Customer's Facility using reasonable tracking and attribution methods, which may include direct sales, integrations, QR codes, point-of-sale workflows, or other technical mechanisms that may evolve over time. Not all YULLR revenue is attributable to a specific facility. Only Attributed Revenue is subject to revenue sharing.

11.3 Collection Flexibility. Individual End User Subscriptions may be sold or facilitated through multiple channels, including YULLR-controlled platforms, Customer-facilitated channels, or future integrated purchasing workflows. The method of sale or payment processing shall not alter YULLR's status as seller of record.

11.4 Scope-Based Revenue Attribution. Attributed Revenue, and any revenue sharing payable to Customer, shall apply only to revenue generated from End User activity occurring within the applicable Authorized Deployment Scope. Revenue generated from deployments, trails, locations, or use cases outside Customer's Authorized Deployment Scope shall not be attributable to Customer unless expressly agreed in writing by YULLR and Customer.

11.5 Marketing and Facilitation Rights. Customer is granted a limited, non-exclusive, non-transferable right to market and promote the Offering and to facilitate the sale of Individual End User Subscriptions at the Facility, subject to the terms of this Agreement. Customer shall not bundle, repackage, or resell subscriptions except as expressly permitted by YULLR in writing.

11.6 Trademark Usage. Subject to the terms and conditions of this Agreement, YULLR grants Customer a limited, non-exclusive, non-sublicenseable, non-transferable (except to permitted assigns) right to market, demonstrate, and facilitate the sale of Individual End User Subscriptions to potential customers through Customer's Channels. Subject to the terms and conditions of this Agreement, Customer may use YULLR's then-current names, marks, logos, and other identifiers for the Platform ("YULLR Marks") for the sole purpose of exercising Customer's rights under this Section 11. YULLR designated intellectual property related notices in advertising and promotions for such, provided that Customer will: (i) only use YULLR Marks in the form and manner, and in accordance with the quality standards and usage guidelines that YULLR specifically prescribes; and (ii) upon termination of this Agreement for any reason, immediately cease all use of the YULLR Marks. Customer will not use, register or take other action with respect to any name, logo, trademark, service mark, or other identifier used anywhere in the world by YULLR, except to the extent authorized in writing by YULLR in advance. The use by Customer of the YULLR Marks in connection with this Agreement shall not create any right, title or interest, in or to the YULLR Marks in favor of Customer and all goodwill associated with the use of the YULLR Marks shall inure to the benefit of YULLR. Customer shall not register, seek to register or contest the validity of the YULLR Marks in any jurisdiction and shall not itself use any name, mark or designation that is confusingly similar to any of the YULLR Marks.

12. Fees, Revenue Sharing, and Taxes.

12.1 Fees.

(a) Generally. Fees paid by Customer are non-refundable and must be made in US dollars by such account as YULLR may specify in writing from time to time, or by another mutually agreed-upon payment method.

(b) Subscription Fees. Customer shall pay YULLR the following "**Subscription Fees**" without offset or deduction. Customer shall make all payments hereunder in US dollars by ACH to such account as YULLR may specify in writing from time to time, or by another mutually agreed-upon payment method.

(i) Initial Subscription Period Fees. During the Initial Subscription Period, Customer shall pay YULLR the "**Initial Subscription Fees**" identified in the Order Form at the cadence identified in the Order Form (e.g., monthly or annually).

(ii) Capture Location Fees. Customer shall pay YULLR the "**Capture Location Fees**" at the cadence identified in the Order Form.

(iii) All Subscription Fees shall be payable solely by Customer, as identified in the Order Form, and Customer shall be responsible for timely payment of all Subscription Fees hereunder.

(c) End User Subscription Revenue Sharing. All Individual End User Subscriptions are sold by YULLR as seller of record. YULLR shall collect all amounts payable by End Users in connection with Individual End User Subscriptions, regardless of whether such subscriptions are marketed, promoted, or facilitated through Customer's channels. YULLR shall pay Customer its applicable revenue share on Attributed Revenue in accordance with the revenue sharing provisions of this Agreement and the applicable Order Form. Revenue share percentages and thresholds may be adjusted as set forth in the Order Form. For the avoidance of doubt, Customer shall not collect, retain, or remit End User Subscription fees on behalf of YULLR except where expressly agreed in writing, and no such arrangement shall alter YULLR's status as seller of record.

12.2 Late Payments. If Customer fails to make any payment when due, without limiting YULLR's other rights and remedies: (i) YULLR may charge interest on the undisputed past due amount at the rate of 1.5% per month, calculated daily and compounded monthly or, if lower, the highest rate permitted under applicable law; (ii) Customer shall reimburse YULLR for all reasonable costs incurred by YULLR in collecting any late payments or interest, including attorneys' fees, court costs, and collection agency fees; and (iii) if such failure continues for ten (10) days or more, YULLR may suspend Customer's access to all or any part of the Platform until such amounts are paid in full.

12.3 Taxes. All Fees and other amounts payable by Customer under this Agreement are exclusive of taxes and similar assessments. Customer is responsible for all sales, use, and excise taxes, and any other similar taxes, duties, and charges of any kind imposed by any federal, state, or local governmental or regulatory authority on any amounts payable by Customer hereunder, other than any taxes imposed on YULLR's income.

12.4 Auditing Rights and Required Records. Customer's recordkeeping and audit obligations under this Section 12.4 apply only to amounts payable by Customer to YULLR or to revenue attribution data reasonably necessary to verify Attributed Revenue. With respect to the revenue shares described in Section 12.1(b)(i), Customer will maintain complete and accurate records in accordance with generally accepted accounting principles. During the Subscription Period and for a period of two (2) years after the termination or expiration of this Agreement, YULLR may, at its own expense, on reasonable prior Notice, periodically inspect and audit such records with respect to matters covered by this Agreement; provided that if such inspection and audit reveals (i) that Customer has failed to pay any Fees owed by Customer under this Agreement, or (ii) material inaccuracies in Customer-provided data used to determine Attributed Revenue, Customer shall promptly remedy such failure or inaccuracy and, where applicable, pay any resulting amounts owed to YULLR together with interest in accordance with Section 12.2. Customer shall pay for the costs of the inspection and audit if the audit determines that Customer's underpayment equals or exceeds 5% for the audited period.

13. Confidential Information.

13.1 Definition. From time to time during the Subscription Period, either Party may disclose or make available to the other Party information about its business affairs, products, confidential intellectual property, trade secrets, third-party confidential information, and other sensitive or proprietary information, whether orally or in written, electronic, or other form or media that is marked, designated or otherwise identified as "confidential" or something similar at the time of disclosure or within a reasonable period of time thereafter ("**Confidential Information**"). Except for Personal Information, Confidential Information does not include information that, at the time of disclosure is: (a) in the public domain; (b) known to the receiving Party at the time of disclosure; (c) rightfully obtained by the receiving Party on a non-confidential basis from a third party; or (d) independently developed by the receiving Party without use of, reference to, or reliance upon the disclosing Party's Confidential Information.

13.2 Duty. The receiving Party shall not disclose the disclosing Party's Confidential Information to any person or entity, except to the receiving Party's employees, contractors, and agents who have a need to know the Confidential Information for the receiving Party to exercise its rights or perform its obligations hereunder ("**Representatives**"). The receiving Party will be responsible for all the acts and omissions of its Representatives as they relate to Confidential

Information hereunder. Notwithstanding the foregoing, each Party may disclose Confidential Information to the limited extent required (i) in order to comply with the order of a court or other governmental body, or as otherwise necessary to comply with applicable law, provided that the Party making the disclosure pursuant to the order shall first have given written Notice to the other Party and made a reasonable effort to obtain a protective order; or (ii) to establish a Party's rights under this Agreement, including to make required court filings. Further, notwithstanding the foregoing, each Party may disclose the terms and existence of this Agreement to its actual or potential investors, debtholders, acquirers, or merger partners under customary confidentiality terms.

13.3 Return of Materials; Effects of Termination/Expiration. On the expiration or termination of the Agreement, the receiving Party shall promptly return to the disclosing Party all copies, whether in written, electronic, or other form or media, of the disclosing Party's Confidential Information, or destroy all such copies and certify in writing to the disclosing Party that such Confidential Information has been destroyed. Each Party's obligations of non-use and non-disclosure with regard to Confidential Information are effective as of the Effective Date and will expire seven (7) years from the date of termination or expiration of this Agreement; provided, however, with respect to any Confidential Information that constitutes a trade secret (as determined under applicable law), such obligations of non-disclosure will survive the termination or expiration of this Agreement for as long as such Confidential Information remains subject to trade secret protection under applicable law.

14. Data Security and Processing of Personal Information.

14.1 Customer Data. Customer hereby grants to YULLR a non-exclusive, royalty-free, worldwide license to reproduce, distribute, and otherwise use and display the Customer Data during the Subscription Period and perform all acts with respect to the Customer Data as may be necessary for YULLR to provide the Offering and to create derivative data.

14.2 Security Measures. YULLR will implement and maintain commercially reasonable administrative, physical, and technical safeguards designed to protect Customer Data (including Personal Information) from unauthorized access, use, alteration, or disclosure.

14.3 Processing of Personal Information. YULLR's rights and obligations with respect to Personal Information that it collects directly from individuals are set forth in the YULLR Privacy Policy, as updated and amended from time to time. Personal Information processed by YULLR on behalf of Customer will be governed by the terms of this Agreement.

15. Intellectual Property Ownership; Feedback.

15.1 YULLR Assets. Customer acknowledges that, as between Customer and YULLR, YULLR owns all right, title, and interest, including all intellectual property rights, in and to the YULLR Assets and, with respect to Third-Party Products, the applicable third-party providers own all right, title, and interest, including all intellectual property rights, in and to the Third-Party Products.

15.2 Customer Data. YULLR acknowledges that, as between YULLR and Customer, Customer owns all right, title, and interest, including all intellectual property rights, in and to the Customer Data provided by Customer to the Platform. For the avoidance of doubt, all video content, derivatives, analytics, and outputs generated by the Offering are owned by YULLR as set forth in Section 10.2.

15.3 Feedback. If Customer or any of its employees or contractors sends or transmits any communications or materials to YULLR by mail, email, telephone, or otherwise, suggesting or recommending changes to the YULLR Assets, including without limitation, new features or functionality relating thereto, or any comments, questions, suggestions, or the like ("**Feedback**"), YULLR is free to use such Feedback irrespective of any other obligation or limitation between the Parties governing such Feedback.

16. Warranty Disclaimer. THE YULLR ASSETS ARE PROVIDED "AS IS" AND YULLR HEREBY DISCLAIMS ALL WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE. YULLR SPECIFICALLY DISCLAIMS ALL IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT, AND ALL WARRANTIES ARISING FROM COURSE OF DEALING, USAGE, OR TRADE PRACTICE. YULLR MAKES NO WARRANTY OF ANY KIND THAT THE YULLR ASSETS, OR ANY PRODUCTS OR RESULTS OF THE USE THEREOF, WILL MEET CUSTOMER'S OR ANY OTHER PERSON'S REQUIREMENTS, OPERATE WITHOUT INTERRUPTION, ACHIEVE ANY INTENDED RESULT, BE COMPATIBLE OR WORK WITH ANY SOFTWARE, SYSTEM OR OTHER PLATFORM, PROVIDE SPECIFIC OUTCOMES, OR BE ACCURATE, COMPLETE, FREE OF HARMFUL CODE, OR ERROR FREE.

17. Indemnification.

17.1 YULLR Indemnification.

(a) YULLR shall indemnify, defend, and hold harmless Customer from and against any and all losses, damages, liabilities, costs (including reasonable attorneys' fees) ("**Losses**") incurred by Customer resulting from any third-party claim, suit, action, or proceeding ("**Third-Party Claim**") brought against Customer alleging that the Platform, or any use of the Platform in accordance with this Agreement, infringes or misappropriates such third party's US intellectual property rights; provided that Customer promptly notifies YULLR in writing of the claim, cooperates with YULLR, and allows YULLR sole authority to control the defense and settlement of such claim.

(b) If such a claim is made or appears possible, Customer agrees to permit YULLR, at YULLR's sole discretion: to (i) modify or replace the Platform, or component or part thereof, to make it non-infringing; or (ii) obtain the right for Customer to continue use. If YULLR determines that neither alternative is reasonably commercially available, YULLR may terminate this Agreement, in its entirety or with respect to the affected component or part, effective immediately on written Notice to Customer.

(c) This Section 17.1 will not apply to the extent that the alleged infringement arises from: (i) use of the Platform in combination with data, software, hardware, equipment, or technology not provided by YULLR or authorized by YULLR in writing; (ii) modifications to the Platform not made by YULLR; (iii) Customer Data; or (iv) Third-Party Products.

17.2 Customer Indemnification.

(a) Customer shall indemnify, defend, and hold harmless YULLR from and against any claims, damages, liabilities, costs, or expenses (including claims for bodily injury or death) arising out of or related to Customer's use of the Offering at the Facility, including the actions of Customer's employees, contractors, authorized users, or program participants.

(b) Customer shall indemnify, hold harmless, and, at YULLR's option, defend YULLR from and against any Losses resulting from any Third-Party Claim alleging that the Customer Data, or any use of the Customer Data in accordance with this Agreement, infringes or misappropriates such third party's intellectual property or other rights and any Third-Party Claims based on Customer's or any End User's (i) negligence or willful misconduct; (ii) use of the Platform in a manner not authorized by this Agreement; or (iii) use of the Platform in combination with data, software, hardware, equipment or technology not provided by YULLR or authorized by YULLR in writing; in each case provided that Customer may not settle any Third-Party Claim against YULLR unless YULLR consents to such settlement, and further provided that YULLR will have the right, at its option, to defend itself against any such Third-Party Claim or to participate in the defense thereof by counsel of its own choice.

17.3 Sole Remedy. THIS SECTION 17.3 SETS FORTH CUSTOMER'S SOLE REMEDIES AND YULLR'S SOLE LIABILITY AND OBLIGATION FOR ANY ACTUAL, THREATENED, OR ALLEGED CLAIMS THAT THE PLATFORM INFRINGE, MISAPPROPRIATE, OR OTHERWISE VIOLATE ANY INTELLECTUAL PROPERTY RIGHTS OF ANY THIRD PARTY.

18. LIMITATIONS OF LIABILITY. IN NO EVENT WILL YULLR BE LIABLE UNDER OR IN CONNECTION WITH THIS AGREEMENT UNDER ANY LEGAL OR EQUITABLE THEORY, INCLUDING BREACH OF CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, AND OTHERWISE, FOR ANY: (I) CONSEQUENTIAL, INCIDENTAL, INDIRECT, EXEMPLARY, SPECIAL, ENHANCED, OR PUNITIVE DAMAGES; (II) INCREASED COSTS, DIMINUTION IN VALUE OR LOST BUSINESS, PRODUCTION, REVENUES, OR PROFITS; (III) LOSS OF GOODWILL OR REPUTATION; (IV) USE, INABILITY TO USE, LOSS, INTERRUPTION, DELAY OR RECOVERY OF ANY DATA, OR BREACH OF DATA OR SYSTEM SECURITY; OR (V) COST OF REPLACEMENT GOODS OR SERVICES, IN EACH CASE REGARDLESS OF WHETHER YULLR WAS ADVISED OF THE POSSIBILITY OF SUCH LOSSES OR DAMAGES OR SUCH LOSSES OR DAMAGES WERE OTHERWISE FORESEEABLE. IN NO EVENT WILL YULLR'S AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT UNDER ANY LEGAL OR EQUITABLE THEORY, INCLUDING BREACH OF CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, AND OTHERWISE EXCEED THE TOTAL AMOUNTS PAID TO YULLR UNDER THIS AGREEMENT IN THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE CLAIM. The foregoing limitations of liability shall not apply to Customer's obligations to reimburse YULLR for damage to, loss of, or destruction of Equipment pursuant to this Agreement.

19. Subscription Period and Termination.

19.1 Subscription Period. The initial term of this Agreement begins on the Effective Date and, unless terminated earlier pursuant to this Agreement's express provisions, will continue in effect for the period identified in the Order Form (the "**Initial Subscription Period**"). This Agreement will automatically renew for additional successive terms equal to the length of the Initial Subscription Period unless earlier terminated pursuant to this Agreement's express provisions or either Party gives the other Party written Notice of non-renewal at least thirty (30) days prior to the expiration of the then-current term (each a "**Renewal Subscription Period**" and together with the Initial Subscription Period, the "**Subscription Period**").

19.2 Termination. In addition to any other express termination right set forth in this Agreement:

(a) YULLR may terminate this Agreement, effective on written Notice to Customer, if Customer: (i) fails to pay any amount when due hereunder, and such failure continues more than ten (10) calendar days after YULLR's delivery of written Notice thereof; or (ii) breaches any of its obligations under Section 8 or Section 13; or (iii) if Customer no longer has the authority to permit installation or operation of the Equipment at the Facility within the applicable Authorized Deployment Scope;

(b) either Party may terminate this Agreement, effective on written Notice to the other Party, if the other Party materially breaches this Agreement, and such breach: (i) is incapable of cure; or (ii) being capable of cure, remains uncured thirty (30) calendar days after the non-breaching Party provides the breaching Party with written Notice of such breach; or

(c) either Party may terminate this Agreement, effective immediately upon written Notice to the other Party, if the other Party: (i) becomes insolvent or is generally unable to pay, or fails to pay, its debts as they become due; (ii) files or has filed against it, a petition for voluntary or involuntary bankruptcy or otherwise becomes subject, voluntarily or involuntarily, to any proceeding under any domestic or foreign bankruptcy or insolvency law; (iii) makes or seeks to make a general assignment for the benefit of its creditors; or (iv) applies for or has appointed a receiver, trustee, custodian, or similar agent appointed by order of any court of competent jurisdiction to take charge of or sell any material portion of its property or business.

19.3 Effect of Expiration or Termination. Upon expiration or earlier termination of this Agreement, Customer shall immediately discontinue use of the YULLR Assets and, without limiting Customer's obligations under Section 13, Customer shall delete, destroy, or return all copies of the YULLR Assets and certify in writing to the YULLR that the YULLR Assets has been deleted or destroyed. No expiration or termination will affect Customer's obligation to pay all Fees that may have become due before such expiration or termination or entitle Customer to any refund. Upon termination of this Agreement, Customer's right to receive revenue sharing shall cease, except for amounts earned but unpaid as of the effective date of termination.

19.4 Survival. This Section 19.4 and Sections 8, 13, 15, 16, 17, 18, 19.3, and 20 survive any termination or expiration of this Agreement. No other provisions of this Agreement survive the expiration or earlier termination of this Agreement.

20. Miscellaneous.

20.1 Entire Agreement. This Agreement, together with any other documents incorporated herein by reference, constitutes the sole and entire agreement of the Parties with respect to the subject matter of this Agreement and supersedes all prior and contemporaneous understandings, agreements, and representations and warranties, both written and oral, with respect to such subject matter. In the event of any inconsistency between the statements made in the body of this Agreement, and any other documents incorporated herein by reference, the following order of precedence governs: (i) first, this Agreement; and (ii) second, any other documents incorporated herein by reference.

20.2 Notices. All notices, requests, consents, claims, demands, waivers, and other communications hereunder (each, a "**Notice**") must be in writing and addressed to the Parties at the addresses set forth on the first page of this Agreement (or to such other address that may be designated by the Party giving Notice from time to time in accordance with this Section). All Notices must be delivered by nationally recognized overnight courier (with all fees pre-paid), email (with confirmation of transmission) or certified or registered mail (in each case, return receipt requested, postage pre-paid). Except as otherwise provided in this Agreement, a Notice is effective only: (i) upon receipt by the receiving Party; and (ii) if the Party giving the Notice has complied with the requirements of this Section.

20.3 Force Majeure. In no event shall either Party be liable to the other Party, or be deemed to have breached this Agreement, for any failure or delay in performing its obligations under this Agreement (except for any obligations to make payments), if and to the extent such failure or delay is caused by any circumstances beyond such Party's reasonable control, including but not limited to acts of God, flood, fire, earthquake, explosion, war, terrorism, invasion, riot or other civil unrest, strikes, labor stoppages or slowdowns or other industrial disturbances, or passage of law or any action taken by a governmental or public authority, including imposing an embargo.

20.4 Amendment and Modification. No amendment or modification to this Agreement is effective unless it is in writing and signed by an authorized representative of each Party.

20.5 Waiver. No failure or delay by either Party in exercising any right or remedy available to it in connection with this Agreement will constitute a waiver of such right or remedy. No waiver under this Agreement will be effective unless made in writing and signed by an authorized representative of the Party granting the waiver.

20.6 Severability. If any provision of this Agreement is invalid, illegal, or unenforceable in any jurisdiction, such invalidity, illegality, or unenforceability will not affect any other term or provision of this Agreement or invalidate or render unenforceable such term or provision in any other jurisdiction. Upon such determination that any term or other provision is invalid, illegal, or unenforceable, the Parties shall negotiate in good faith to modify this Agreement so as to effect their original intent as closely as possible in a mutually acceptable manner in order that the transactions contemplated hereby be consummated as originally contemplated to the greatest extent possible.

20.7 Governing Law; Submission to Jurisdiction. This Agreement is governed by and construed in accordance with the internal laws of the State of Delaware without giving effect to any choice or conflict of law provision or rule that would require or permit the application of the laws of any jurisdiction other than those of the State of Delaware. Any legal suit, action, or proceeding arising out of or related to this Agreement or the licenses granted hereunder must be instituted in the federal courts of the United States or the courts of the State of Delaware in each case located in New Castle County, DE, and each Party irrevocably submits to the exclusive jurisdiction of such courts in any such suit, action, or proceeding.

20.8 Assignment. Customer may not assign any of its rights or delegate any of its obligations hereunder, in each case whether voluntarily, involuntarily, by operation of law or otherwise, without the prior written consent of YULLR. Any purported assignment or delegation in violation of this Section will be null and void. No assignment or delegation will relieve the assigning or delegating Party of any of its obligations hereunder. This Agreement is binding upon and inures to the benefit of the Parties and their respective permitted successors and assigns.

20.9 Export Regulation. The Offering utilizes software and technology that may be subject to US export control laws, including the US Export Administration Act and its associated regulations. Customer shall not, directly or indirectly, export, re-export, or release the Offering or the underlying software or technology to, or make the Offering or the underlying software or technology accessible from, any jurisdiction or country to which export, re-export, or release is prohibited by law, rule, or regulation. Customer shall comply with all applicable federal laws, regulations, and rules, and complete all required undertakings (including obtaining any necessary export license or other governmental approval), prior to exporting, re-exporting, releasing, or otherwise making the Platform or the underlying software or technology available outside the US.

20.10 Equitable Relief. Each Party acknowledges and agrees that a breach or threatened breach by such Party of any of its obligations under Section 13 or, in the case of Customer, Section 8, would cause the other Party irreparable harm for which monetary damages would not be an adequate remedy and agrees that, in the event of such breach or threatened breach, the other Party will be entitled to equitable relief, including a restraining order, an injunction, specific performance and any other relief that may be available from any court, without any requirement to post a bond or other security, or to prove actual damages or that monetary damages are not an adequate remedy. Such remedies are not exclusive and are in addition to all other remedies that may be available at law, in equity or otherwise.

20.11 Publicity. YULLR may identify Customer as a user of the Offering and may use Customer's name, logo, and other trademarks in YULLR's customer list, press releases, blog posts, advertisements, and website (and all use thereof shall be solely for the purpose of identifying Customer as a user of the Offering. Nothing in this Agreement shall be deemed to grant YULLR any ownership interest in Customer's name, logo, or trademarks, and all goodwill associated with Customer's marks shall remain with Customer). Without limiting the foregoing, Customer acknowledges and agrees that YULLR may include Customer's name, logo, or other identifying marks as a translucent watermark on video content generated through the Offering and shared by End Users, together with YULLR branding. Any such watermarking shall be designed to be non-invasive and intended to identify the Facility and promote Customer in connection with the content.

Otherwise, neither Party may use the name, logo, or other trademarks of the other Party for any purpose without the other Party's prior written approval. Customer hereby consents to any and all uses and displays by YULLR and its agents of the name, voice, likeness, image, appearance, and biographical information of Customer's employees, consultants, contractors, coaches, and agents in any media, at any time during or after this Agreement, for all legitimate promotional, marketing, and educational purposes of YULLR in connection with this Agreement. Customer hereby forever releases YULLR and its directors, officers, employees, and agents from and against any and all claims, actions, damages, losses, costs, expenses, and liabilities of any kind, arising under any legal or equitable theory whatsoever, relating to any such permitted use of any of the foregoing.

SIGNATURES

YULLR, Inc.	**CUSTOMER**
By: ____________________________________	By: ____________________________________
Name: _________________________________	Name: _________________________________
Title: __________________________________	Title: __________________________________